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STATE OF IOWA
BEFORE THE BOARD OF BEHAVIORAL SCIENCE EXAMINERS

IN THE MATTER OF:

STEVEN J. FEIERSTEIN,
License No: 130-00022

RESPONDENT.

NO: 97-004
99-004

**SETTLEMENT AGREEMENT
AND CONSENT ORDER**

The Iowa Board of Behavioral Science Examiners (Board) and Steven J. Feierstein, (Respondent) enter into this Settlement Agreement and Consent Order (Agreement) pursuant to Iowa Code Sections 17A.10(1), 272C.3(4) (1999), and Chapter 645 Iowa Administrative Code Section 12.1.

1. The Respondent presently possesses license number 130-00022 to practice marital and family therapy in the State of Iowa. Respondent currently does not reside in the State of Iowa and has expressed an intention not to return to residence in Iowa. In June, 1999, the Respondent communicated to the Board that he did not intend to renew his Iowa marital and family therapy license in the future.

2. On November 19, 1999, the Board filed a Statement of Charges against the Respondent and the Board has jurisdiction over this pending contested matter.

3. On December 13, 1999 the Respondent filed an answer denying the material allegations of the charges and any wrongdoing.

4. Chapter 645, Iowa Administrative Code Section 12.1 provides for and allows the resolution of contested cases by informal settlement without adjudication of the claims and merits.

5. Respondent agrees that the State's counsel may present this Agreement to the Board and may have ex parte communications with the Board while presenting it.

6. This Agreement shall be part of the permanent record of the Respondent and may be considered by the Board in determining the nature and severity of any disciplinary action arising from the Respondent's future practice of marital and family therapy.

7. Respondent has a right to a hearing on the charges, but waives his right to hearing and all attendant rights by freely and voluntarily entering into this Agreement. The Consent Order is the final agency order in the contested case and resolves all issues pertaining to the pending Statement of Charges.

8. This Agreement is subject to approval by the Board:

- (a) If the Board fails to approve this Agreement, it shall be of no force or effect on either party, and it shall not be admissible for any purpose in further proceedings in this matter.
- (b) If the Board approves this Agreement, it shall fully dispose of all issues in this case.

9. This Agreement is public record pursuant to Iowa Code Sections 272C.3(4) and 272C.6(4) (1999).

IT IS THEREFORE ORDERED:

A. VOLUNTARY LICENSE SURRENDER

1. The Respondent, without admission as to any wrongdoing and without adjudication of the respective merits of the charges, agrees to voluntarily surrender his license to practice marital and family therapy in the State of Iowa pursuant to 645 Iowa Administrative Code Section 12.1(5). The Board Chairperson's signature on this Agreement shall signify the Board's acceptance of the Respondent's surrender of his license to practice marital and family therapy in the State of Iowa.

2. The Respondent shall surrender his marital and family therapy license to the Board no later than 60 days after the execution date of this Agreement. The execution date is that date which accompanies the Board Chairperson's signature.

3. By voluntarily surrendering his license, the Respondent agrees not to engage in the practice of marital and family therapy in the State of Iowa.

B. TERMS OF REINSTATEMENT

1. The Respondent agrees that should he seek reinstatement of his license to practice marital and family therapy in the State of Iowa, such application shall be subject to the provisions of 645 Iowa Administrative Code Section 11.31. Accordingly, the Respondent acknowledges that in any application for reinstatement, the Respondent shall bear the burden of proof in establishing to the Board's satisfaction that the basis for the Respondent's decision to surrender his license no longer exists and that it will be in the public interest for the license to be reinstated.

2. The Board reserves the right to conditionally approve any application by the Respondent for reinstatement of his marital and family therapy license in the State of Iowa.

C. INVESTIGATIVE FILE

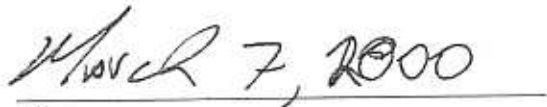
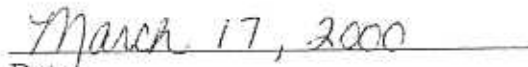
1. The investigative file in this case is privileged and confidential and shall not be subject to disclosure or discovery except as permitted by Iowa Code Section 272C.6(4) (1999).

2. The parties to this Agreement stipulate that the Respondent may supplement the investigative file in this case by submitting to the Board statements or letters from the Respondent's former clients.

WHEREFORE, the terms of this Settlement Agreement and Consent Order are agreed to and accepted by the Iowa Board of Behavioral Science Examiners and the Respondent.



Steven J. Feierstein
Respondent

 Vice Chair of
Stanton L. Visser, Chairperson
Board of Behavioral Science Examiners
Date
Date

STATE OF IOWA
BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE EXAMINERS

IN THE MATTER OF:	)	CASE NO. 97-004
	)	99-004
STEVEN J. FEIERSTEIN	)	
License No. 130-00022	)	
	)	NOTICE OF HEARING
RESPONDENT	)	

YOU ARE HEREBY NOTIFIED that on September 17, 1999, the Iowa Board of Behavioral Science Examiners found probable cause to file a Statement of Charges against you. If any of the allegations against you are founded, the Board has authority to take disciplinary action against you under Iowa Code chapters 17A, 147, 154D and 272C (1999), and 645 Iowa Administrative Code chapter 9, 11, 13, and 31. A copy of the Statement of Charges is attached, and sets forth the particular statutes and rules which you are alleged to have violated, and further provides a short and plain statement of the matters asserted.

IT IS HEREBY ORDERED that a disciplinary contested case hearing be held upon the Statement of Charges on Friday, January 21, 2000, before the Board. The hearing shall begin at 10:00 a.m., and shall be held in the Lucas State Office Building-5th Floor Professional Licensure Board Room, 321 E. 12th Street, Des Moines, Iowa. The Board shall serve as presiding officer, but the Board may request an Administrative Law Judge make initial rulings on pre-hearing matters, and be present to assist and advise the Board at hearing.

Within 20 days of the date you are served with the Statement of Charges and Notice of Hearing, you are required by 645 IAC 11.12 to file an answer to the charges. In that answer, you should also state whether you will require an adjustment of the date and time of the hearing.

At hearing, you may appear personally and be represented by counsel at your own expense. You will be allowed the opportunity to respond to the charges against you. The procedural rules governing the conduct of the hearing are found at 645 IAC chapter 11.

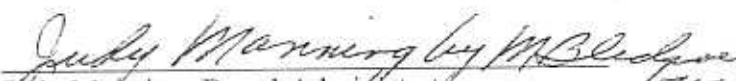
The office of the Attorney General is responsible for representing the public interest (the State) in this proceeding. Copies of all pleadings filed with the Board should be provided to counsel for the State at the following address:

John Lundquist
Assistant Attorney General
Iowa Attorney General's Office
2nd Floor, Hoover State Office Building
Des Moines, IA 50319
Phone (515) 281-3658

If you fail to appear at hearing, the Board may enter a default decision or proceed with the hearing and render a decision in your absence, in accordance with Iowa Code section 17A.12(3) and 645 IAC 11.21.

This matter may be resolved by settlement agreement. The procedural rules governing the Board's settlement process are found at 645 IAC chapter 12. If you are interested in pursuing settlement of this matter, please contact John Lundquist, Assistant Attorney General, at the above telephone number.

Dated this 22nd day of November, 1999.


Judy Manning, Board Administrator
Iowa Board of Behavioral Science Examiners

STATE OF IOWA
BEFORE THE BOARD OF BEHAVIORAL SCIENCE EXAMINERS

IN THE MATTER OF:)

NO: 97-004
99-004

STEVEN J. FEIERSTEIN,)
License No: 130-00022)

RESPONDENT.)
_____)

STATEMENT OF CHARGES

TO THE ABOVE NAMED RESPONDENT:

The Iowa Board of Behavioral Science Examiners has jurisdiction of this matter pursuant to Iowa Code chapters 17A, 154D, and 272C (1999).

Licenses issued by the Board are subject to the laws of the State of Iowa and the administrative rules promulgated by the Board.

COUNT I

Respondent is charged with conducting dual relationships in violation of 645 Iowa Administrative Code 31.8(3) and 31.9(1)(b). See Iowa Code §§ 154D.3, 272C.3 (1999); 645 IAC 31.8.

COUNT II

Respondent is charged with using his professional relationships with clients to further his own interests in violation of 645 Iowa Administrative Code 31.8(3) and 31.9(1)(c). See Iowa Code §§ 154D.3, 272C.3 (1999); 645 IAC 31.8.

COUNT III

Respondent is charged with entering into financial arrangements with clients which do not conform to accepted professional practices in violation of 645 Iowa Administrative Code 31.8(3) and 31.9(7). See Iowa Code §§ 154D.3, 272C.3 (1999); 645 IAC 31.8.

COUNT IV

Respondent is charged with engaging in unethical conduct or practices that are harmful or detrimental to the public by participating in prohibited dual relationships or financial arrangements with clients to further his own pecuniary interests. See Iowa Code §§ 147.55(3), 154D.3, 272C.10(3) (1999); 645 IAC 31.8(3), 31.8(7), 31.9(1)(c), 31.9(1)(b), and 31.9(7).

CIRCUMSTANCES

1. On or about December 21, 1992, the Board issued the Respondent license number 130-00022 to practice marital and family therapy in the State of Iowa. Respondent's marital and family therapy license is current and will next expire on September 30, 2000.
2. Board records indicate that at all times material to the following events, the Respondent was a Licensed Marital and Family Therapist.
3. Respondent was a partner with The Center for Human Growth and Development (formerly known as Social and Psychological Service Associates), where he practiced as a marital and family therapist. During this same time period, Respondent also owned Feierstein and Associates, Inc., where he practiced business and organizational consulting.
4. Respondent provided therapy services to Patient 1. Respondent also provided business consultation services to Patient 1. In the course of attempting to receive payment for his business

consultation services, Respondent referred to information obtained in the course of the therapeutic relationship and used such information to Respondent's own advantage.

5. Respondent provided therapy services to Patient 2 in exchange for Patient 2 providing computer services to Respondent. The financial arrangement between Respondent and Patient 2 did not conform to accepted professional practices.

6. Respondent provided varying types of therapy services to the members of Family 1. Respondent subsequently began to provide business consultation services to businesses owned by the Husband of Family 1. Husband and Wife of Family 1 also developed a social relationship with Respondent and his wife. Respondent's role as business consultant to Husband was at times in conflict with Family 1's overall best interests. Respondent used his relationship with Family 1 to further his own interests contrary to accepted professional practices.

7. The respondent has engaged in conduct that violates the laws and rules governing the practice of marital and family therapy in the State of Iowa and the Board has jurisdiction to initiate a disciplinary proceeding in this case.

FINDING OF PROBABLE CAUSE

On September 17, 1999, the Iowa Board of Behavioral Science Examiners
found probable cause to file this Statement of Charges and to order a hearing set in this case.

Dated this 19 day of November, 1999.

IOWA BOARD OF BEHAVIORAL
SCIENCE EXAMINERS

Judy Manning
By Judy Manning, Board Administrator

Copies to:

John Lundquist
Assistant Attorney General
Hoover Building
LOCAL

Todd A. Scott
Joy, Poffenberger & Poffenberger
1220 Second Street - Box 248
Perry, IA 50220 - 0248